

or purported ‘causes of action’ seeking a stay as part of the pleading.” (Notice of Motion at 2:2-13.)

“The court may, upon a motion made pursuant to Section 435 . . . [s]trike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436, subd. (a).)

Cross-Defendants argue that an operative pleading is not an appropriate procedural vehicle for a request to stay the action and, therefore, the subject prayer for relief, and allegations relating thereto, are irrelevant or improper matters. Mr. Al Ghazali appears to concede the issue by not filing anything in opposition to the Motion.

Based on the foregoing, the Motion is GRANTED IN PART. The Court, on a showing of good cause, orders the Clerk to STRIKE from the Cross-Complaint:

- a. The phrase “and STAY of Proceedings” from paragraph 8;
- b. Paragraph 9 in its entirety; and,
- c. The phrase “STAY pending ownership ruling in Case 25FL000156 (See Ex. A)” from paragraph 10(d).

[2] MOTION TO STAY CROSS-COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to August 27, 2026, at 8:30 a.m. in Dept. B.

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In The Matter of Selene Rodarte Vela

26CV001139

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.